

Pablo Torres Santiago, et al. v. James A. Quaglino, Inc., et al., 24CV-0553

Hearing: Motion for Final Approval of Class Action Settlement

Date: September 24, 2026

TENTATIVE RULING

Pablo Torres Santiago filed this class action for discrimination, harassment, and wage and hour violations against James A. Quaglino, Inc. dba Quaglino Roofing (Defendant) on September 6, 2024. An amended complaint (FAC) was filed on March 5, 2026, by order of the Court, by Santiago, Misael de la Cruz, Roman Nazario Nolasco, Luis Nazario and Isaac Nazario (collectively Plaintiffs).

Plaintiffs reported the matter settled and moved for preliminary approval of a FEHA Discrimination Class Action Settlement Agreement (FEHA Settlement), a Wage and Hour Class Action and PAGA Settlement Agreement (Wage and Hour Settlement), and a Confidential Tort Settlement Agreement and Release (Tort Settlement). (See, Code Civ. Proc., § 382, Cal. Rules of Court, rule 3.769.)

The parties sought preliminary approval of a gross settlement amount of \$1,975,000, with class action settlements of \$1,625,000 for the FEHA Settlement \$225,000 for the Wage and Hour Settlement

The Court granted Plaintiffs' motion for preliminary approval at a hearing on February 19, 2026, and entered an order on March 5, 2026. The Court appointed Plaintiffs as class representatives, Deacon Law, PC, as Class Counsel, and Apex as Settlement Administrator, and approved the proposed class notices.

Plaintiff filed an unopposed motion for final approval of class action and PAGA settlements. At the initial hearing, the Court continued the hearing on the motion to allow counsel to submit additional support for their fee request, and for plaintiffs to submit evidence that FEHA Settlement class members and Wage and Hour Settlement class members were provided with notice of the date and time of the initial final approval hearing.

At the prior hearing, the Court also inquired as to defendant Joe Soto, who has not been served and did not participate in the settlement.

Plaintiff has now filed a motion to dismiss Mr. Soto as a defendant.

Plaintiff has also filed a continued motion for final approval along with a "third" declaration from

Dax B. Deason¹ and a supplemental declaration from Tarus Dancy (Dancy) on behalf of Apex Class Action, LLC, the settlement administrator. The continued motion and papers were served on counsel for defendants with the continued hearing date and no opposition was filed.

No class members have filed an opposition or objection with the Court.

Motion to Dismiss Defendant Soto.

Code of Civil Procedure section 581(k) provides that “[n]o action may be dismissed which has been determined to be a class action under the provisions of this code unless and until notice that the court deems adequate has been given and the court orders the dismissal.”

California Rules of Court, rule 3.770 provides that “A dismissal of an entire class action, or of any party or cause of action in a class action, requires court approval. The court may not grant a request to dismiss a class action if the court has entered judgment following final approval of a settlement. Requests for dismissal must be accompanied by a declaration setting forth the facts on which the party relies. The declaration must clearly state whether consideration, direct or indirect, is being given for the dismissal and must describe the consideration in detail.”

The court may grant the request without a hearing. (Cal. Rules of Court, rule 3.770(b).) Class members must be provided notice unless the Court finds that dismissal will not prejudice them. (Cal. Rules of Court, rule 3.770(c).)

Plaintiff’s counsel declares as follows:

Defendant Soto has never been served with the Complaint. As noted in my first declaration in this case, I made numerous unsuccessful attempts through background investigations and process servers to locate and serve Defendant Soto, but his whereabouts are unknown. On September 12, 2024, I hired e-Legal Services, Inc. to locate and serve Defendant Soto the Complaint in this class action and PAGA lawsuit. From September 12, 2024 to October 17, 2024, I worked with the process service, Plaintiff Pablo Torres Santiago and counsel for Defendant Quaglino Roofing to attempt locating Defendant Soto. Plaintiffs asked Quaglino Roofing if they would accept service for Defendant Soto, but that request was declined. However, Quaglino Roofing provided Defendant Soto's last known address and phone number. My firm ran background checks of Defendant Soto in Lexis and worked with Plaintiff Torres to collect information about Defendant Soto's appearance and vehicle. All information learned was sent to the

¹ Only one declaration from Mr. Deason, filed on July 21, 2026, was initially submitted in support of the motion for final approval. It appears that Mr. Deason refers to his declaration submitted in support of the motion for preliminary approval as his “first” declaration. Neither that “first” declaration, nor the declaration of co-counsel Raimondo were filed and made part of the record for the motion for final approval, only for preliminary approval.

process server to assist with investigating, locating and serving Defendant Soto. Legal Services, Inc. conducted several skip traces of Defendant Soto to learn his address and whereabouts. However, due to the common nature of Joe Soto's name, the process server could not find a credible address or contact information that matched the profile of information provided by the parties. The process server also ran a reverse phone check for phone number provided by Quaglino Roofing and could not find a match.

Defendant Soto has never participated in the discovery of this case, the mediation or in any other way. I have also never spoken to Mr. Soto.

Defendant Soto has not been given any consideration for Plaintiffs' decision to seek dismissal of him from the case.

(Third Deason Decl., ¶¶ 5-7.)

Counsel declares that defense counsel informed him that they do not oppose dismissal of defendant Soto. (Third Deason Decl., ¶ 8.) Counsel declares that he believes dismissal of Soto will not affect the claims or rights of the class members, as the currently structured settlement of the class action and PAGA claims is a significant sum that provides class members with adequate compensation and remedies for the discrimination, tort and wage and hour violations at issue, and that it is believed that Defendant Soto likely does not have any assets to contribute to the settlement since he does not evidently own a home and was previously terminated from Quaglino Roofing. (*Ibid.*)

Given the above, the Court finds dismissal of Soto to be proper, and that given the apparent lack of assets, dismissal will not prejudice the class members.

Plaintiffs' motion to dismiss defendant Soto is granted.

Continued Motion for Final Approval of Class Action Settlements.

I. Notice to Class Members

The settlement administrator declares that on May 19, 2026, the FEHA Class Notice and the Wage and Hour Class Notice were sent to all individuals listed in the class data in both English and Spanish languages. (Tran Decl., ¶¶ 4-7; Exs. A, B.) As of July 16, 2026, after skip tracing, one class notice remains undeliverable as no updated address was identified and attempts to contact the individual by telephone were unsuccessful. (Tran Decl., ¶¶ 8-9.) As of that date, Apex had not received any requests for exclusion, objections or disputes from class members. (Tran Decl., ¶¶ 10-13.) There are 38 participating members in the FEHA Settlement class and 66 participating class members in the Wage and Hour Settlement class. (Tran Decl., ¶ 14.)

However, both notices provided that class members "will be notified of the date and time of the Final Settlement Hearing by the Settlement Administrator." (Tran Decl., Exs. A, B.) Neither

included the date and time of the final settlement hearing. There was no further evidence that class members were notified of the date and time of the Final Settlement Hearing.

Dancy now declares that the FEHA Class Notice and Wage and Hour Class Notice advised class members that they “will be notified of the date and time of the Final Settlement Hearing by the Settlement Administrator.” However, the notices themselves did not include the date and time of the Final Settlement Hearing. (Dancy Decl., ¶ 5.)

On August 6, 2026, Apex prepared proposed notification postcard language advising participating class members of the continued Final Settlement Hearing, including the hearing date, time, and department. The proposed postcard language was provided to counsel for Plaintiff and counsel for Defendants, and both approved the language. (Dancy Decl., ¶ 7; Ex. A.)

On August 24, 2026, Apex mailed the approved notification postcard, in both English and Spanish, to all participating members of the FEHA Settlement Class and the Wage and Hour Settlement Class at their most recent mailing addresses maintained by Apex. (Dancy Decl., ¶ 8.)

Reviewing the Dancy declaration and the notice provided (Exhibit A), the Court finds that the class members for both classes have received notice of this final fairness hearing.

II. Fairness, Adequacy, and Reasonableness of Settlement

a. FEHA Settlement

The net settlement amount for the FEHA Settlement class is \$949,325.73 after subtracting the requested Class Counsel Fees Payment (\$650,000.00), the amount requested for Class Counsel Litigation Expenses Payment (\$5,157.27), the requested Class Representative Service Payments totaling \$15,500.00 (\$7,500 for Pablo Torres, and \$2,000 each for Misael De La Cruz, Roman Nazario Nolasco, Luis Nazario and Isaac Nazario), and the requested Administration Expenses Payment (\$4,990.00) from the Gross Settlement Amount (\$1,625,000.00.). (Tran Decl., ¶¶ 15, 21; Ex. C.)

The highest individual FEHA Settlement class payment is currently estimated to be approximately \$41,304.56, the average FEHA Settlement class payment is currently estimated to be approximately \$24,982.97, and the lowest individual FEHA Settlement class payment is currently estimated to be approximately \$217.39. (Tran Decl., ¶ 16.)

b. Wage and Hour Settlement

The net settlement amount available for the Wage and Hour Settlement class is estimated to be \$100,342.73 and was calculated by subtracting the requested Class Counsel Fees Payment (\$90,000.00), the amount requested for Class Counsel Litigation Expenses Payment (\$5,157.27), the requested Class Representative Service Payments totaling \$4,500.00 (\$2,500 for Pablo Torres, and \$500 each for Misael De La Cruz, Roman Nazario Nolasco, Luis Nazario and Isaac Nazario),

and the PAGA Penalties (\$25,000.00) from the Gross Settlement Amount (\$225,000.00). (Tran Decl., ¶ 17, Ex. C.)

The highest individual Wage and Hour Settlement class payment is currently estimated to be approximately \$3,538.94, the average individual Wage and Hour Settlement class payment is currently estimated to be approximately \$1,520.34, and the lowest individual Wage and Hour Settlement class payment is currently estimated to be approximately \$14.56. (Tran Decl., ¶ 18.)

Pursuant to the Agreement, 35% of the PAGA Payment (\$8,750.00) will be allocated to Aggrieved Employees. There are 34 Aggrieved Employees who worked a total of 2,881 Pay Periods during the PAGA Period. The highest individual PAGA payment is approximately \$324.97, the average individual PAGA payment is approximately \$257.35, and the lowest individual PAGA payment is approximately \$6.07. (Tran Decl., ¶¶ 19, 20.)

Having reviewed the claims at issue, Plaintiffs' arguments in the memorandum of points and authorities, and the evidence submitted in support of the motion, the Court finds that the proposed settlement overall is fair and reasonable. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801-1802 [factors to consider in fairness determination].)

III. Requested Fees and Payments

Even without an objection to the requested attorney fees and costs, the Court has a duty to protect the rights of all parties, and to prevent abuses which might undermine the proper administration of justice. (*Howard Guntz Profit Sharing Plan v. Superior Court* (2001) 88 Cal.App.4th 572, 581.)

As an initial matter, the Court finds the enhancement awards for the Plaintiffs in this action. (Mtn. pp. 29-30.) Apex's costs in the total amount of \$4,990 are also reasonable. (Tran Decl., ¶ 21.)

As to litigation costs, counsel declares that costs have exceeded the agreed upon amount of \$10,314.54, but the firm is not seeking reimbursement for additional expenses. (Deason Decl., ¶ 6.)

Counsel requests 40% of the gross settlement amount or \$790,000 as an award of attorneys' fee, split between two law firms, with an 85% portion being assigned to Deason Law, P.C., and the remaining 15% distributed to Of Counsel Anthony P. Raimondo.² (Mtn., pp. 14-15.)

Counsel Dax B. Deason declares that his current billing rate for complex employment discrimination cases is \$742 per hour. (Deason Decl., ¶ 3.) He declares that he has decades of experience. (Deason Decl., ¶ 4 [detailing past experience in complex employment law].) He further declares that he was retained by Plaintiffs based on a 40% contingency fee and that all the effort, time, research, legal work, and expenses have been advanced by the firm with no remuneration. (Deason Decl., ¶ 5.) Deason declares that he retained the services of Antony P.

² This includes 40% of the individual Tort Settlement, which equals \$50,000.

Raimondo to act as of counsel for the prosecution of the class action. (Deason Decl., ¶ 2.) The motion cites to a declaration from attorney Raimondo, but no declaration from him was filed in support of this motion.

“[U]se of the percentage method to calculate a fee in a common fund case, where the award serves to spread the attorney fee among all the beneficiaries of the fund, does not in itself constitute an abuse of discretion.” (*Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 503.)

When the matter came on for initial hearing, the Court explained that it generally requires a lodestar cross-check for comparison to ensure that any percentage fee is reasonable. (*Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 558 [the lodestar is generally the primary method for establishing the reasonable amount of attorney’s fees, but a percentage figure may be used as long as it accurately reflects the marketplace]; *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [the experienced trial judge is the best judge of the value of professional services rendered in his court.])

A lodestar cross-check thus provides a mechanism for bringing an objective measure of the work performed into the calculation of a reasonable attorney fee. If a comparison between the percentage and lodestar calculations produces an imputed multiplier far outside the normal range, indicating that the percentage fee will reward counsel for their services at an extraordinary rate even accounting for the factors customarily used to enhance a lodestar fee, the trial court will have reason to reexamine its choice of a percentage.

(*Laffitte v. Robert Half Internat. Inc.*, *supra*, 1 Cal.5th at p. 504.)

A lodestar cross-check does not require exhaustive scrutinization of every hour and is not necessary where the Court uses other means to evaluate the reasonableness of a percentage fee. (*Laffitte v. Robert Half Internat. Inc.*, *supra*, 1 Cal.5th at pp. 505-506.) Nonetheless, the Court finds a lodestar analysis helpful in evaluating the reasonableness of the award.³

Here, the requested percentage award is significantly higher than the 33.33% that is commonly requested in class action cases, and no support for the reasonableness of the requested amount was originally provided. Counsel does not provide any billing records, accounting or description of the work performed on the case other than a brief and conclusory paragraph in the motion stating that the fees were justified. (Mtn. p. 29, ll. 11-22.)

Counsel’s motion cited to two cases from this County from ten or more years ago, as well as one case from Los Angeles, one from Orange County, and one from the District of Columbia from

³ Citing a federal decision, counsel contends that the percentage approach in setting the fee is preferable to the lodestar. (*In re Activision Securities Litigation* (N.D. Cal. 1989) 723 F.Supp. 1373, 1378.) However, even in that case, the court found that the rate should be set at 30%. (*Ibid.*)

1981, which apparently awarded 40% or more of the common fund as fees. However, the motion provides no information on the cases other than the case numbers and makes no effort to establish they are similar to the case here or show the percentage requested in this case.

Counsel declares that plaintiffs agree to the percentage. (Deason Decl., ¶ 5.) However, “[t]he cases make clear that fee allocation in a common fund setting is not just a matter of private agreement between lawyers and their clients... it is equally apparent that courts awarding attorneys’ fees from a common fund recovery ensure that those fees are reasonable and don’t unjustly enrich the attorneys at their clients’ expense.” (*Lofton v. Wells Fargo Home Mortgage* (2018) 27 Cal.App.5th 1001, 1017.) In the Court’s experience an award of one-third of the common fund for class actions is reasonable; 40% of the common fund is unusually high.

Counsel initially did not provide a lodestar cross-check or provide evidence that his billing rate, which is over \$700 per hour, is the reasonable hourly rate prevailing in the community for similar work. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.) Counsel now declares that per the Laffey Matrix, the hourly rate for an attorney with 20+ years of experience in the Los Angeles market is \$1,271.17, that San Luis Obispo County falls within that region for purposes of the matrix, and that his billing rate of \$742 is significantly lower. (Third Deason Decl., ¶¶ 9-10.) Counsel does not address his paralegals’ rates of \$258 per hour in his declaration, but in footnote 3 of the continued motion, he provides that rate is established in the Laffey Matrix. The motion represents that the two paralegals on the case have 3 and 10 years of experience respectively.

Counsel declares that he has reviewed the invoice for this matter, which resulted in 624.30 hours of work, valued at \$333,887.60. (Third Deason Decl., ¶ 11; Ex. 3 [invoices].) The \$790,000 request represents the \$333,887.60 lodestar with a 2.37 multiplier. (See *Serrano v. Priest*, 20 Cal.3d 25 (1977) 20 Cal.3d 25 (Serrano III); *Laffitte v. Robert Half Internat. Inc., supra*, 1 Cal.5th at p. 488 [2.03-2.13 multiplier reasonable]; *Chodos v. Borman* (2014) 227 Cal.App.4th 76, 100, fn. 12 [2.52 found to be greatest multiplier affirmed in 2014 survey]; *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 229 [“Multipliers can range from 2 to 4 or even higher.”])

While this matter was settled at mediation without any motion work, the Court recognizes the fact that this is a contingent class action with multiple settlements and FEHA claims, which added complexity to the matter. The Court therefore finds a lodestar multiplier of 2.37 is reasonable. However, counsel provides no justification for his rates in relation to San Luis Obispo County rates. While counsel here would surely love to be able to charge Los Angeles rates, the typical rates charged and awarded in this community are significantly lower. In the Court’s experience, an award up to \$200 per hour for local paralegals with significant experience and up to \$500 for counsel with many years of experience and expertise is standard.

Given the work conducted, evidence presented, lodestar cross-check, and the Court’s own knowledge of rates and awards in this Court and community, the Court finds that a reasonable common fund attorney fees award in this matter is one-third of the settlement amount, rather than 40%. This amounts to an award of \$487,500 in fees for the FEHA Settlement, and \$74,250 in

fees for the Wage and Hour Settlement, for a total fee award of \$611,750, including the \$50,000 in fees agreed to pursuant to the individual Tort Settlement.⁴

ORDER (PROPOSED)

Plaintiffs' request that defendant Soto be dismissed is granted.

Absent objection from any class members at the hearing, Plaintiffs' motion for final approval is granted subject to adjustments to the fee award. Plaintiffs' counsel's award is adjusted from 40% of FEHA and Wage and Hour Settlements to 33%, amounting to an award of \$487,500 for the FEHA Settlement, and \$74,250 for the Wage and Hour Settlement, for a total fee award of \$561,750, including the \$50,000 in fees agreed to pursuant to the individual Tort Settlement.

Amounts in excess of the above for the two settlements shall go into the common fund for distribution to the class members.

Plaintiffs shall prepare an updated proposed order and judgment.

Counsel shall come prepared to discuss a hearing for counsel to report on the distribution of funds to class members. (Code Civ. Proc., § 384(b).)

⁴ An award of 33.33% yields an award of fees slightly higher than the lodestar plus multiplier calculated with reduced rates of \$500 for the attorneys and \$200 for the paralegals. Multiplying those rates by the hours worked (341 for Mr. Deason, 33.50 for Mr. Raimondo, 223.30 for Ms. Cornejo and 37.60 for Ms. Deason), and then multiplying the total by 2.37 yields a lodestar of \$554,224.50. Adding the \$50,000 individual Tort Settlement fees, an award based upon the lodestar would total \$604,224.50.